

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                   |                                            |                                                       |                                    |                                            |
|--------------------------------------------------|-------------------------------------------------------------------|--------------------------------------------|-------------------------------------------------------|------------------------------------|--------------------------------------------|
| Investigator:<br>William Begeny                  | Team:<br>Team # 1                                                 | CCRB Case #:<br>200601470                  | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                                   |                                            | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 02/02/2006 9:30 PM | Location of Incident:<br>§ 87(2)(b) 70th Precinct<br>Stationhouse | Precinct:<br>70                            | 18 Mo. SOL<br>8/2/2007                                | EO SOL<br>8/2/2007                 |                                            |
| Date/Time CV Reported<br>Fri, 02/03/2006 4:22 AM | CV Reported At:<br>CCRB                                           | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Fri, 02/03/2006 4:22 AM |                                    |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. An officer            |        |        | 070 PCT |
| 2. POM Orin Cox          | 09708  | 922171 | 070 PCT |
| 3. SGT Norman Grandstaff | 00588  | 922445 | 070 PCT |
| 4. LT Frank Kelly        | 00000  | 895603 | 070 PCT |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. SGT Edward Kraemer | 04710     | 917834 | 070 PCT  |
| 2. POM Scott Nuzzi    | 27541     | 930851 | 070 PCT  |

| Officer(s)              | Allegation                                                                                            | Investigator Recommendation |
|-------------------------|-------------------------------------------------------------------------------------------------------|-----------------------------|
| A.SGT Norman Grandstaff | Force: At § 87(2)(b) Sgt. Norman Grandstaff used physical force against § 87(2)(b)                    | § 87(2)(b)                  |
| B.POM Orin Cox          | Force: At § 87(2)(b) PO Orin Cox used physical force against § 87(2)(b)                               | § 87(2)(b)                  |
| C. An officer           | Force: At § 87(2)(b) an officer used a chokehold against § 87(2)(b)                                   | § 87(2)(b)                  |
| D.POM Orin Cox          | Abuse: At § 87(2)(b) PO Orin Cox damaged § 87(2)(b)'s property.                                       | § 87(2)(b)                  |
| E. An officer           | Abuse: At § 87(2)(b) an officer threatened to arrest § 87(2)(b)                                       | § 87(2)(b)                  |
| F. An officer           | Abuse: At § 87(2)(b) an officer frisked § 87(2)(b)                                                    | § 87(2)(b)                  |
| G. An officer           | Force: At § 87(2)(b) an officer struck § 87(2)(b) with a nightstick.                                  | § 87(2)(b)                  |
| H.LT Frank Kelly        | Abuse: At § 87(2)(b) Lt. Frank Kelly authorized the stop and question of § 87(2)(b)                   | § 87(2)(b)                  |
| I.SGT Norman Grandstaff | Abuse: At the 70th Precinct Stationhouse, Sgt. Norman Grandstaff strip-searched § 87(2)(b)            | § 87(2)(b)                  |
| J.POM Orin Cox          | Abuse: At the 70th Precinct Stationhouse, PO Orin Cox strip-searched § 87(2)(b)                       | § 87(2)(b)                  |
| K.POM Orin Cox          | Abuse: At the 70th Precinct Stationhouse, PO Orin Cox did not obtain medical treatment for § 87(2)(b) | § 87(2)(b)                  |

## Synopsis

On February 3, 2006, § 87(2)(b) called the CCRB call processing system in order to file a complaint against several NYPD officers. On February 2, 2006 at approximately 9:30 PM, § 87(2)(b) was walking in the vicinity of § 87(2)(b) when five male plainclothes officers stopped him (**Allegation A**). Among the officers present were later identified officers PO Orin Cox, Sgt. Norman Grandstaff, and Lt. Frank Kelly from the 70<sup>th</sup> Precinct. PO Cox, Sgt. Grandstaff, and two additional unidentified white male officers immediately approached § 87(2)(b) and punched him several times in the head and kicked him several times in the legs (**Allegations B and C**). § 87(2)(b) moved to a nearby fence and an unidentified officer reached his arm around § 87(2)(b)'s neck from behind and restricted his breathing (**Allegation D**). § 87(2)(b) was punched approximately twenty more times and kicked by PO Cox and the other officers causing him to fall backwards onto the officers. During this interaction, § 87(2)(b) tore his jacket (**Allegation E**). § 87(2)(b) was then handcuffed and two officers dragged him to an unmarked car. First an officer and then PO Cox searched § 87(2)(b) also striking him several more times in the face. § 87(2)(b) did not say anything to the officers at this time. § 87(2)(b)'s cousin, § 87(2)(b) then arrived at the scene and asked the officers what was happening. An unidentified plainclothes officer told § 87(2)(b) to move away or he would be arrested, which he did (**Allegation F**). This same officer then frisked § 87(2)(b) (**Allegation G**). § 87(2)(b) was then placed inside a black unmarked RMP with tinted windows where an unidentified officer struck him on the side of his body with a nightstick (**Allegation H**). § 87(2)(b) was then moved to a prisoner van and taken to the precinct. At the precinct § 87(2)(b) was strip searched by PO Cox and Sgt. Grandstaff (**Allegation I and J**). After being searched, § 87(2)(b) told PO Cox that he was in pain and that he wanted to receive medical treatment. PO Cox told § 87(2)(b) that he did not look hurt and refused to provide him with medical treatment (**Allegation K**). § 87(2)(b) was then released from the precinct with a summons § 87(2)(a) 160.50

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

### Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) black male who at the time of this interview was § 87(2)(b)

#### Statements to Medical Professionals: § 87(2)(b)

Immediately following his release, § 87(2)(b) went to § 87(2)(b) in Brooklyn. At the hospital, § 87(2)(b) complained of pain to his head, neck, and his left leg that he incurred by being beaten up by police officers (Encl. 19A-19I).

#### CCRB Statement: § 87(2)(b)

On February 7, 2006, § 87(2)(b) was interviewed at the CCRB (Encl. 10A-10E). § 87(2)(g)

On February 2, 2006, § 87(2)(b) left his home at § 87(2)(b) at approximately 9:00 PM and walked to the bodega to buy a sports drink. § 87(2)(b) went to the bodega at § 87(2)(b) and § 87(2)(b) purchased his drink, and did not speak to or interact with any individuals on the way to the store. From the store to § 87(2)(b)'s home is approximately a twenty-minute walk. § 87(2)(b) did not carry a bag and did not have a grocery bag for the sports drink he purchased. § 87(2)(b) walked during this time in a normal manner with his hands inside his pockets because it was a cold evening. § 87(2)(b) headed back towards his home, walking on the sidewalk on § 87(2)(b) near § 87(2)(b). During this walk he may have said hello to some unknown individuals, but he did not have any conversation with them, shake their hands, or have any physical interaction with them. § 87(2)(b) did not stop moving at any time. § 87(2)(b) then noticed a dark colored car with dark tinted windows drive past him in the opposite direction, but he did not think anything particular about this car at the time. There may have been other civilian individuals in the vicinity at the time, but § 87(2)(b) did not notice them because he was minding his own business. § 87(2)(b) is a well-lit street with no broken streetlights. There was a moderate amount of traffic at this time.

While walking, § 87(2)(b) heard several footsteps from behind him that sounded as if they were running. § 87(2)(b) assumed that whomever was running would run past him. Without saying or hearing anything previous to this point, § 87(2)(b) felt an officer strike him in the back of the head with a closed fist. Immediately following this, he felt several additional punches to his head and body and several kicks to his legs while he was still standing. § 87(2)(b) realized that something serious was happening and moved his hands in front of him and onto the 3'0" tall gate that surrounds the abandoned building at § 87(2)(b). He received approximately twenty blows in total from an officer later identified as PO Orin Cox, an officer later identified to be Sgt. Grandstaff, and two additional white male plainclothes officers. A fifth white male officer, possibly Lt. Kelly, was also present but was not involved with the physical altercation. An unidentified officer then reached his arm around § 87(2)(b)'s neck and restricted his breathing. § 87(2)(b) heard several officers say, "Why didn't you stop? Why did you run?" § 87(2)(b) said, "I don't run." Due to the kicks to his legs, § 87(2)(b) then fell backwards on top of the four officers. PO Orin Cox continued to strike § 87(2)(b) in the head with a closed fist. § 87(2)(b) told PO Cox to stop hitting him. PO Cox told him to "Shut up." PO Cox punched § 87(2)(b) while a white male officer kicked § 87(2)(b) in the legs. At some point during this altercation, the front pocket of § 87(2)(b)'s jacket was torn open.

Together, PO Cox and an unidentified white male officer lifted § 87(2)(b) off the ground and dragged him to the unmarked dark colored RMP. § 87(2)(b) was positioned at the back passenger side of the car where PO Cox and an additional officer, possibly Sgt. Grandstaff, searched him. Together the officers unzipped § 87(2)(b)'s jacket, reached their hands inside the numerous pockets both inside and outside the jacket, and put their hands inside both § 87(2)(b)'s pants pockets. An officer removed a piece of paper, which he uses to record general information and notes, which included numbers and activities for the day. The officers

looked through this information and it was returned to him later, after he left the precinct. After the search was concluded, an officer asked § 87(2)(b) for his ID, and he explained that it was in his wallet in his back pocket. PO Cox then struck § 87(2)(b) on the left side of his face with a closed fist. § 87(2)(b) told PO Cox again that his ID was in his right hand pocket, which he then removed. § 87(2)(b) was then placed in handcuffs and was searched again by PO Cox, who again reached inside all of the pockets on his jacket. This was the first indication § 87(2)(b) had that he was interacting with police officers. Several times during these searches, § 87(2)(b) attempted to speak to the officers, who told him to “Shut up,” which he did. PO Cox asked § 87(2)(b) what he did for a living, which § 87(2)(b) did not answer, because he did not feel these questions were relevant. No officer made any mention of why they were searching § 87(2)(b) or asked him any questions relating to weapons or drug use. § 87(2)(b) did say to the officers, “I don’t think any of you have learned from Martin Luther King.” While being searched, § 87(2)(b) heard someone shout from inside the house across the street, “Move away from the house,” referring to the police officers. § 87(2)(b) said, “take pictures” to the person inside the home. This home at § 87(2)(b) was immediately in front from where the black car had been parked and across the street from where § 87(2)(b) was initially stopped. Also during this altercation, § 87(2)(b)’s cousin, § 87(2)(b) walked towards him. The officers told § 87(2)(b) to move away, which he did, and § 87(2)(b) and § 87(2)(b) did not interact in any way. At no point did § 87(2)(b) ever strike an officer. At no point did § 87(2)(b) shout, curse or speak in an unruly manner. § 87(2)(b) never attempted to move away from the officers, move his hands from being handcuffed, run from the officers, and did not display any form of evasive or confrontational behavior.

PO Cox then moved § 87(2)(b) into the black unmarked car. Beside him in the back seat were PO Cox and a white male officer. Two more white male plainclothes officers were in the front seat. Before the car began to move again, a white male officer sitting in the back seat struck § 87(2)(b) in his left side with a nightstick, which caused pain that has continued until the time of this interview, but there was no visible injury. The same officer that struck § 87(2)(b) then moved his arm back and swung his nightstick in order to hit § 87(2)(b) said to the officer, “Why are you hitting me?” and without receiving a response, he shook his head and stayed quiet. While inside the car, § 87(2)(b) did not say anything else to the officers, did not move in any way, and did not attempt to struggle. He raised his voice during this encounter, although the officers were speaking equally loud. He did not see any of the officers filling out any paperwork while at the scene.

§ 87(2)(b) was then driven for approximately two minutes along § 87(2)(b) before a marked van with two white male uniformed officers inside arrived and § 87(2)(b) was placed inside. Sitting beside § 87(2)(b) was PO Cox.

§ 87(2)(b) was taken to the 70<sup>th</sup> Precinct and PO Cox took him inside. § 87(2)(b) was placed in a holding cell for approximately fifty minutes. PO Cox and a white male officer later identified as Sgt. Grandstaff returned. § 87(2)(b) was then asked to step outside of the cell and take off his clothes and place them on a table, which he did. § 87(2)(b) removed every article of clothing except for his boxer shorts. The officers asked § 87(2)(b) to shake his clothing for them, which he did, and after shaking his shirt, pants, and boots, no contraband was found. Both officers then examined each of § 87(2)(b)’s articles of clothing thoroughly, looking inside all of the pockets and examining their contents. No other officers were present during this time. § 87(2)(b) told PO Cox that he needed to go to the hospital, explaining that his head, back, and wrist hurt. PO Cox told § 87(2)(b) that he didn’t look hurt. The officers then instructed § 87(2)(b) to dress. § 87(2)(b) waited for approximately twenty minutes before PO Cox returned and issued him a summons for § 87(2)(a) 160.50 after which he was released.

§ 87(2)(b) then took a taxi to § 87(2)(b) because he was feeling significant pain in his head, back, and wrist. While at the hospital, § 87(2)(b) called his cousin, § 87(2)(b) and asked him to pick him up from the hospital, which he did. § 87(2)(b) was given some ibuprofen for the pain.

## Results of Investigation

§ 87(2)(b)

On February 8, 2006, § 87(2)(b) was interviewed at his home at § 87(2)(b), § 87(2)(b) in Brooklyn (Encl. 11A-11C). § 87(2)(b) is a § 87(2)(b) black male who at the time of this interview § 87(2)(b), § 87(2)(g)

On February 2, 2006, at approximately 9:30 PM, § 87(2)(b) left his girlfriend's home at the corner of § 87(2)(b) and § 87(2)(b). Upon exiting her building, and from approximately five to ten feet away, § 87(2)(b) saw one black and three white plainclothes officers holding § 87(2)(b) who he did not yet recognize, against a 3' tall metal gate. The officers were together searching him in front of a building near the corner, on § 87(2)(b). An officer later identified to be PO Cox was moving his hand inside § 87(2)(b)'s jacket, which was open at this time, and inside all of § 87(2)(b)'s pockets, both inside and out, and the sides of his jeans. During this search, § 87(2)(b) mentioned something about a lawyer, which made the officers upset. § 87(2)(b) saw PO Cox punch § 87(2)(b) in the back of his head with his fist two or three times as he stood to the side of him. Three white male officers knelt § 87(2)(b) and pushed him against the gate from behind. § 87(2)(b) asked the officers repeatedly, "What did I do?" The officers told § 87(2)(b) to "Shut up," repeatedly, and appeared to be getting aggravated with him because he continued to ask the officers what he did. § 87(2)(b) spoke loudly at this time, presumably so that other people in the area could hear him. § 87(2)(b)'s hands appeared to be handcuffed because his arms were behind him, but § 87(2)(b) could not see if he was handcuffed.

After looking closely, § 87(2)(b) recognized § 87(2)(b) stopped to see what was happening and an officer told him to mind his own business. Because he was concerned about his cousin, § 87(2)(b) asked the officer what the problem was in an inquiring and non-aggressive tone. An unidentified officer instructed § 87(2)(b) to walk away before he got arrested. This same officer then approached § 87(2)(b) frisked him by patting the outside of his clothes and around his waistband, and removed his wallet from his back pants pocket without asking. He did not go through any of the items in the wallet, but he did look at § 87(2)(b)'s ID, which was inside. The officer asked § 87(2)(b) if he had any weapons on him. § 87(2)(b) explained that he had a box cutter, which he uses for his job at UPS. The officer asked § 87(2)(b) for a job ID, which he did not have with him at that time. § 87(2)(b) explained that he had the number to his manager on his phone that he could call right then to prove that he worked for UPS. The officer then instructed § 87(2)(b) to put the knife away and leave the location. § 87(2)(b) being concerned about his cousin, walked approximately twenty to thirty feet away to the end of the block and observed the situation.

Due to PO Cox's punches and because the two other white male officers continued to push § 87(2)(b) against the gate, § 87(2)(b) fell to the ground. Several of the officers then picked § 87(2)(b) up from the ground and dragged him from behind by his shoulders towards a black Chevy Impala with dark tinted windows that was immediately in front of § 87(2)(b) blocking traffic.

For approximately twenty minutes, the black Impala did not move. There was a great deal of yelling from inside and outside the car. § 87(2)(b) could not see inside the car due to the tinted windows. He saw two officers from outside the car yelling at § 87(2)(b) inside the car. Eventually, because the car did not go anywhere, § 87(2)(b) left the location.

§ 87(2)(b) did not see § 87(2)(b)'s jacket ripped, but this may have happened while he was being pulled from behind to the car. At no point did § 87(2)(b) witness an officer grab § 87(2)(b)'s neck. From what § 87(2)(b) saw, no officers were carrying anything that resembled a nightstick. § 87(2)(b) did not interact with anyone inside any of the houses and did not interact with any other pedestrians.

### Attempts to Contact Additional Civilian Witnesses

On February 8, 2006, the undersigned investigator went to the vicinity of § 87(2)(b) and § 87(2)(b) in an effort to contact additional civilian witnesses. After attempting to contact the residents inside the homes surrounding the place of occurrence, none were found.

### PO Orin Cox

*On February 2, 2006, PO Cox worked a 5:30 PM by 2:05 AM tour, in plainclothes, in an unmarked vehicle, as an anti-crime officer with Sgt. Norman Grandstaff and Lt. Frank Kelly.*

### Memo Book: PO Orin Cox

On February 2, 2006, PO Cox noted in his memo book that at 9:40 PM a male was stopped and at 9:48 PM one individual was arrested (Encl. 12A-12B).

### Summons #§ 87(2)(b)

On February 2, 2006, PO Cox issued § 87(2)(b) a summons § 87(2)(a) 160.50

### Stop, Question and Frisk Report

On February 2, 2006, PO Cox prepared a stop, question and frisk report for § 87(2)(b) (Encl. 14A). The report indicated that § 87(2)(b) was stopped and frisked due to furtive movements and actions indicative of engaging in violent crimes. The report also notes that the area of the frisk had a high incidence of reported offenses, that the time of day corresponded to criminal activity, and that § 87(2)(b) changed directions at the sight of an officer. There is no indication that § 87(2)(b) was searched. The report also indicates that PO Cox verbally identified himself as a police officer.

### CCRB Statement: PO Orin Cox

*PO Orin Cox from the 70<sup>th</sup> Precinct was interviewed at the CCRB on February 28, 2006 (Encl. 15A-15B).*

On February 2, 2006 at approximately 9:30 PM, PO Cox was driving northbound along § 87(2)(b) towards § 87(2)(b) with Sgt. Grandstaff and Lt. Kelly. PO Cox witnessed an individual, later identified as § 87(2)(b) approach an unidentified male individual on the sidewalk. § 87(2)(b) was carrying a large thin silver cell phone in his left hand that the officers initially believed to be a handgun. The officers believed that there was a robbery about to take place, due to the close proximity of § 87(2)(b) to the other individual and due to their suspicion that he was carrying a weapon. The officers stopped the car and exited. PO Cox and Sgt. Grandstaff displayed their badges and shouted police. § 87(2)(b) continued to walk away and ignored the officers. § 87(2)(b) walked approximately sixty feet from where the officers initially called for him to stop. § 87(2)(b) walked towards the front of an apartment building. The other individual whom § 87(2)(b) appeared to be approaching did not move away and the officers did not interact with him in any way. Sgt. Grandstaff ran to § 87(2)(b) grabbed him, and stopped him by pushing him against a black metal fence to further inquire about the object § 87(2)(b) was carrying. Sgt. Grandstaff asked § 87(2)(b) to see his hands. § 87(2)(b) shoved his hands underneath his jacket and said that he did not have to show the officers anything. PO Cox then approached § 87(2)(b) and attempted to grab his left hand. § 87(2)(b) at this time, became combative with the officers, and shouted, "I don't have to show you anything, I know my rights." § 87(2)(b) further stated, "This is wrong, this is harassment. You guys are messed up," which caused various people in the vicinity to notice the incident and look out their windows. § 87(2)(b) and the officers did not interact with any other civilians. PO Cox and Sgt. Grandstaff asked § 87(2)(b) two or three additional times to see his hands, which § 87(2)(b) would not provide, at which point PO Cox took § 87(2)(b)'s left hand and Sgt. Grandstaff took § 87(2)(b)'s right hand, and together the officers placed § 87(2)(b) in handcuffs. At this time, PO Cox was able to retrieve § 87(2)(b)'s cell phone and determined that this was the object they believed to be a weapon. PO Cox then frisked § 87(2)(b) to determine if he had any weapons, feeling on the outside of his clothing and around his waistband. When pulling § 87(2)(b) off the fence, his jacket was hooked on the edge, causing it to tear.

§ 87(2)(b) was placed in the car and PO Cox explained to § 87(2)(b) why they stopped him. After hearing this, § 87(2)(b) calmed down. § 87(2)(b) explained to the officers that he had heard that if the police took someone's phone, they would throw it on the ground and smash it, which was why he did not cooperate.

The officers were in the car with § 87(2)(b) approximately two or three minutes before leaving the scene. The entire interaction up to this point lasted approximately five to ten minutes.

While at the precinct, PO Cox took § 87(2)(b) to a cell and asked him to empty his pockets, which he did. PO Cox also asked § 87(2)(b) to take off his shoes and socks to determine if he had any contraband, which he did. There was no further search of § 87(2)(b) and he was not strip-searched. § 87(2)(b) was cooperative with the officers' requests. In lieu of the arrest, PO Cox issued § 87(2)(b) a summons for § 87(2)(a) 160.50.

Because PO Cox was focused on § 87(2)(b) he did not notice if there were other people at the scene, what they were doing, or if they interacted with any of the officers. He did not know what the other officers were doing while he interacted with § 87(2)(b). At no point did § 87(2)(b) attempt to strike an officer. § 87(2)(b) resisted by not giving the officers his hands as instructed. § 87(2)(b) did not use any profanities while arguing with the officers. At no point did any officer strike § 87(2)(b) with a closed fist or an asp. PO Cox carried an asp with him, but he did not remove it at any time. At no point did any officer grab § 87(2)(b) anywhere on or near his neck or restrict his breathing in any way.

#### **Sgt. Norman Grandstaff**

*On February 2, 2006, Sgt. Grandstaff worked a 5:26 PM by 2:10 AM tour as an anti-crime sergeant with PO Orin Cox and Lt. Frank Kelly in an unmarked vehicle wearing plainclothes.*

#### **Memo Book: Sgt. Norman Grandstaff**

On February 2, 2006, Sgt. Grandstaff noted in his memo book that a male was stopped at 9:40 PM. He further noted that at 9:57 PM, an individual was arrested (Encl. 16A-16B).

#### **CCRB Statement: Sgt. Norman Grandstaff**

*Sgt. Norman Grandstaff was interviewed at the CCRB on March 3, 2006 (Encl. 17A-17B).* § 87(2)(g)

Sgt. Grandstaff initially observed two males standing, facing each other approximately two feet from one another, rather than walking as stated by PO Cox. Sgt. Grandstaff further stated that the unidentified individual facing him appeared to be nervous based on his facial expression.

When § 87(2)(b) proceeded to walk away from the officers, he walked very quickly. Sgt. Grandstaff was unsure if § 87(2)(b) continued to carry what was later determined to be a phone in his hand or if he shoved it into his pocket.

While § 87(2)(b) walked away from the officers, he motioned back to the officers by waving his finger back and forth from over his shoulder as if to indicate, "No. No." Sgt. Grandstaff ran to meet with § 87(2)(b) and stopped him over two car lengths past where he was initially called to stop by pushing him against a short black fence from behind him. At this time, Sgt. Grandstaff attempted to frisk § 87(2)(b) who at this time became combative and began to flail his arms.

Sgt. Grandstaff then frisked § 87(2)(b) but no contraband was found. Sgt. Grandstaff then determined that the metallic object was a Blackberry mobile phone. The Blackberry was a square, metallic colored, four-inch object that folded together. Sgt. Grandstaff is unsure if this object was in his pocket or his hand when he made this determination. Either Sgt. Grandstaff or PO Cox conducted a search of § 87(2)(b) recovering his wallet and some papers.

Uniformed officers Sgt. Kramer and PO Nuzzi later arrived at the scene with a prisoner van and transported § 87(2)(b) to the precinct.

At some point after Sgt. Grandstaff interacted with § 87(2)(b) either PO Cox or Lt. Kelly interviewed the nervous individual in order to determine what had happened. This individual stated that he had not been robbed.

Per arrest procedure, § 87(2)(b) was inspected for contraband or items that may have placed him or any of the officers at risk.

There were no pedestrians present in the vicinity at this time. The summons § 87(2)(a) 160.50

#### **Lt. Frank Kelly**

*On February 2, 2006, Lt. Kelly worked a 4:00 PM by 12:25AM tour, in plainclothes, and assigned an unmarked car. Lt. Kelly was the special operations lieutenant and was assigned to work anti-crime with Sgt. Norman Grandstaff and PO Orin Cox.*

#### **Memo Book: Lt. Frank Kelly**

Lt. Kelly did not have any memo book entries regarding this incident.

#### **CCRB Statement: Lt. Frank Kelly**

*Lt. Kelly was interviewed at the CCRB on March 24, 2006 (Encl. 18A-18B).* § 87(2)(g)

As soon as § 87(2)(b) heard the vehicle stop and the doors open, he looked over his shoulder, saw the officers approaching, and began to walk quickly away. While walking away, § 87(2)(b) placed the metallic object in his pocket.

Upon exiting the vehicle, as Sgt. Grandstaff and PO Cox approached § 87(2)(b) Lt. Kelly approached the unidentified individual whom he believed to be the victim.

Lt. Kelly asked the unidentified male if he knew § 87(2)(b) and if he was robbed. The individual told Lt. Kelly that he was not. The individual refused to answer many of Lt. Kelly's questions.

Lt. Kelly did not see precisely how § 87(2)(b) was stopped because he was interacting with the potential victim at this time. When the officers searched § 87(2)(b) he screamed, "Fuck you, you fucking cops. You're fucking scumbags. I fucking hate you," as well as other profanities to the same effect. When Lt. Kelly saw the officer's struggling to gain control over § 87(2)(b) he left the potential victim and walked towards Sgt. Grandstaff and PO Cox to see if they needed any further assistance. The potential victim then left at this time, so Lt. Kelly did not file any report of the individual. Once § 87(2)(b) was handcuffed, an officer, whom Lt. Kelly could not recall, searched § 87(2)(b) and determined that the metallic object they believed to be a weapon was actually an oversized mobile phone.

Lt. Kelly went back to the precinct momentarily while PO Cox was brought to the precinct, but he went back out shortly afterwards and did not stay at the precinct while § 87(2)(b) was processed.

#### **Additional Officer Interviews**

§ 87(2)(g)

#### **Disposition of Summons** § 87(2)(b)

§ 87(2)(b) is scheduled to appear in court on § 87(2)(b).

#### **Medical Records for** § 87(2)(b)

§ 87(2)(b) checked himself into the § 87(2)(b) in Brooklyn at § 87(2)(b) on § 87(2)(b) (Encl. 19A-19I). § 87(2)(b) stated that he was beat up and complained of pain to his head, neck, and left leg. After making an objective assessment of his condition, the screening RN noted that § 87(2)(b) had a ¼ inch abrasion on his right anterior arm and no other obvious injury.



On § 87(2)(b)'s physical examination, there was no evidence of trauma to his head, chest, abdomen, skin, back, extremities, or neck. There was strain to his neck and a contusion on his chest. § 87(2)(b) was released and prescribed Tylenol for the pain.

X-rays were taken of § 87(2)(b)'s cervical spine in three views. Radiologist § 87(2)(b) stated that there is no significant injury to any internal structures.

#### **CCRB History for PO Orin Cox**

In the seven years PO Cox has been with the NYPD, he has had one substantiated CCRB complaint from an incident on November 14, 2002. For the allegation of property damaged, the CCRB recommended charges and the NYPD issued no penalty or disciplinary action because the statute of limitations had expired (Encl. 4A).

#### **CCRB History for Sgt. Norman Grandstaff**

In the seven years Sgt. Grandstaff has been with the NYPD, he has had one substantiated CCRB complaint from an incident on January 7, 2004. For the allegation of physical force, the CCRB recommended charges and the NYPD issued instructions (Encl. 5A).

#### **CCRB History for Lt. Frank Kelly**

In the sixteen years Lt. Kelly has been with the NYPD, he has had no previous substantiated CCRB complaints (Encl. 6A).

#### **CCRB History for § 87(2)(b)**

§ 87(2)(b) has two other CCRB cases on file. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

#### **CCRB History for § 87(2)(b)**

§ 87(2)(b) has no previous CCRB complaints on file (Encl. 8A).

### **Conclusions and Recommendations**

#### **Undisputed Facts**

It is undisputed that PO Cox and Sgt. Grandstaff forcibly stopped § 87(2)(b) while he was walking. § 87(2)(b) was placed in handcuffs and taken to the precinct where he was later released with a summons.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

#### **Officer Identification**

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

### Credibility Assessment

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that he was punched in the face and head approximately twenty-five times and kicked in the legs a significant number of times, hit with an asp or nightstick while in the unmarked RMP, and choked. § 87(2)(g)

§ 87(2)(b) complained that he was hit on his left side with an asp. § 87(2)(g)

§ 87(2)(b) was photographed at the CCRB on February 7, 2006, five days after the date of this incident, but there were no visible injuries detected. § 87(2)(g)

§ 87(2)(g)

Lt. Frank Kelly, Sgt. Norman Grandstaff, PO Orin Cox

§ 87(2)(g)

**Allegation A: At § 87(2)(b) Lt. Frank Kelly authorized the stop and question of § 87(2)(b)**

§ 87(2)(b) stated that he was stopped for no clear reason. Lt. Kelly, Sgt. Grandstaff, and PO Cox stated that they believed § 87(2)(b) to be in the possession of a firearm and that he was about to commit a robbery.

§ 87(2)(g)

Kamins *Search and Seizure* states that under the “common law right to inquire” an officer can ask a potential suspect about the contents of his pocket when the officer observes something that “looks like a gun,” in that an officer is entitled to interfere with a citizen “to the extent necessary to gain explanatory information” (Encl. 1A).

§ 87(2)(g)

§ 87(2)(g) . Kamins's *Search and Seizure* states that under certain circumstances, the stop of a defendant is justified based on the "furtive behavior of the defendants prior to questioning" (Encl. 1B). § 87(2)(g)

§ 87(2)(g)

**Allegation B: At § 87(2)(b) , Sgt. Norman Grandstaff used physical force against § 87(2)(b)**

**Allegation C: At § 87(2)(b) , PO Orin Cox used physical force against § 87(2)(g)**

§ 87(2)(g) and § 87(2)(b) stated that PO Cox punched § 87(2)(b) numerous times in the head and face while several other officers kicked § 87(2)(b) in the legs. PO Cox, Sgt. Grandstaff, and Lt. Kelly stated that PO Cox and Sgt. Grandstaff grabbed § 87(2)(b) by the arm and moved him to a short fence where he was handcuffed after some resistance.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

**Allegation D: At § 87(2)(b) , an officer used a chokehold against § 87(2)(b)**

§ 87(2)(b) stated that an unidentified officer reached from behind him and placed their arm around his neck and restricted his breathing.

§ 87(2)(g)

**Allegation E: At § 87(2)(b) , PO Orin Cox damaged § 87(2)(b) s property.**

§ 87(2)(b) stated that his jacket was torn while struggling with the officers, and possibly while he was on the ground. PO Cox stated that § 87(2)(b) s jacket was torn because it was caught on the fence when he was pulled away from it to be placed in the RMP.

§ 87(2)(g)

§ 87(2)(g)

**Allegation F: At § 87(2)(b) an officer threatened to arrest § 87(2)(b)**

**Allegation G: At § 87(2)(b) an officer frisked § 87(2)(b)**

§ 87(2)(b) stated that he saw § 87(2)(b) and an officer told him to move away from the scene, which he did. § 87(2)(b) stated that when he approached the scene, an officer threatened to arrest him if he did not leave the location. No officer made any mention of seeing or interacting with any other individuals at the scene aside from the individual whom they believed to be a robbery victim.

§ 87(2)(g)

**Allegation H: At § 87(2)(b) an officer struck § 87(2)(b) with a nightstick.**

§ 87(2)(b) stated that while inside the unmarked RMP, an unidentified white officer struck him with a nightstick. PO Cox stated that he carries an asp, but he did not use one at any time during this incident.

§ 87(2)(g)

**Allegation I: At the 70<sup>th</sup> Precinct Stationhouse, Sgt. Norman Grandstaff strip-searched § 87(2)(b)**

**Allegation J: At the 70<sup>th</sup> Precinct Stationhouse, PO Orin Cox strip-searched § 87(2)(b)**

§ 87(2)(b) stated that while at the police station he was asked by PO Cox and Sgt. Grandstaff to remove all his clothing excluding his underwear, which the officers then took and examined closely for contraband. PO Cox and Sgt. Grandstaff stated that as per procedure, § 87(2)(b) was inspected for contraband that could be dangerous to himself or the officers by was not strip-searched.

§ 87(2)(g)

**Allegation K: At the 70<sup>th</sup> Precinct Stationhouse, PO Orin Cox did not obtain medical treatment for**

§ 87(2)(b)

§ 87(2)(b) stated that he complained to PO Cox that he was in pain and that he would like to go to the hospital, which PO Cox refused. Upon being released, § 87(2)(b) went immediately to the hospital and complained of pain in his head, neck and wrist. No officer made any mention of § 87(2)(b) complaining of being in pain or requesting medical attention.

§ 87(2)(g)

§ 87(2)(b) In NYPD v. Collins, Administrative Law Judge Ethel H. Corcoran held that an officer has the responsibility to obtain medical treatment from a trained professional when an individual is complaining of pain, regardless of their perceived injuries (Encl. 2A-2C). § 87(2)(g)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: